

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
HENRY MITCHELL

Plaintiff,

-against-

THE CITY OF NEW YORK,
THE NEW YORK CITY POLICE DEPT.,
SERGEANT CHRISTIAN SANCHEZ, SHIELD #947847
INDIVIDUALLY AND AS A POLICE OFFICER,
POLICE OFFICER GARY PEREZ TAX ID# [REDACTED] 6105,
INDIVIDUALLY AND AS A POLICE OFFICER AND
POLICE OFFICER JOHN DOE AS HIS IDENTITY IS
UNKNOWN INDIVIDUALLY AND AS A POLICE
OFFICER.

Defendants.
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**SUMMONS WITH
VERIFIED COMPLAINT**

Index No.:

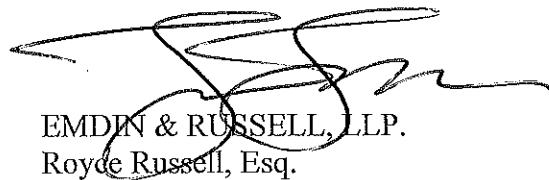
Date Purchased:

Plaintiff designates New York
County as the place of trial.
The basis of the venue is place
Where the cause of action arose.

To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney with twenty (20) days after the service of this summons, exclusive of the day of service, (30) days after the service is complete, if the summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
This 2nd day of October, 2017



EMDIN & RUSSELL, LLP.
Royde Russell, Esq.
Attorneys for Plaintiff
499 Seventh Avenue, Floor 12N
New York, New York 10018
(212) 683-3995

Defendants address:

City of New York
c/o Corporation Counsel,
100 Church Street
New York, New York 10007

New York City Police Department
1 Police Plaza
New York, New York

Police Officer Perez
Tax ID #: ■6105
Manhattan North Narcotics
c/o 1 Police Plaza
New York, New York

Sgt. Christian Sanchez
Shield #947847
c/o PSA 6
2770 Frederick Douglass Blvd
New York, NY 10039

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
HENRY MITCHELL

Plaintiff,

VERIFIED COMPLAINT

Index No.:

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THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPT., SERGEANT CHRISTIAN SANCHEZ,
SHIELD #947847, INDIVIDUALLY AND AS A POLICE
OFFICER, POLICE OFFICER GARY PEREZ TAX
ID# [REDACTED] 6105, INDIVIDUALLY AND AS A POLICE
OFFICER AND POLICE OFFICER JOHN DOE AS
HIS IDENTITY IS UNKNOWN INDIVIDUALLY
AND AS A POLICE OFFICER.Defendants.
-----X

The Plaintiff, Henry Mitchell, by his attorneys, Emdin & Russell, LLP

complaining of the defendants, respectfully shows to this court and alleges:

1. Upon information and belief that at all times hereinafter mentioned, the defendant, The City of New York, hereinafter referred to as "City", was, and still is, a municipal corporation duly organized and existing under, and by virtue of, the laws of the State of New York.

2. Upon information and belief at all times hereinafter mentioned, the defendant, the City of New York, i.e. "City", its agents, servants and/or employees operated, maintained and controlled the New York City Police Department, hereinafter referred to as "NYPD", including all the police officers and correction officers therein.

3. Upon information and belief, at all times hereinafter mentioned, and on the 11th day of October, 2016, Police Officer Sergeant Christian Sanchez, hereinafter referred to as "Sanchez" was employed as a Police Officer by the "City" and/or "NYPD" and assigned to

Police Service Area "PSA" 6, and at all relevant times set forth below acted in the capacity of a police officer. Upon information and belief his shield number is 947847.

4. Upon information and belief at all times hereinafter mentioned and on the 11th day of October, 2016, "Sanchez", was acting within the scope of his employment as a police officer and under the direction of the "City" as their agent, servant and/or employer.

5. Upon information and belief, at all times hereinafter mentioned, and on the 11th day of October, 2016, Police Officer Perez, hereinafter referred to as "Perez" was employed as a Police Officer by the "City" and/or "NYPD" and assigned to Manhattan north Narcotics, his tax I.D # is [REDACTED] 6105, and at all relevant times set forth below acted in the capacity of a police officer.

6. Upon information and belief at all times hereinafter mentioned and on the 11th day of October, 2016, "Perez" was acting within the scope of his employment as a police officer and under the direction of the "City" as their agent, servant and/or employee.

7. Upon information and belief, at all times hereinafter mentioned, and on the 11th day of October, 2016, Police Officer John Doe, hereinafter referred to as "Doe" was employed as a Police Officer by the "City" and/or "NYPD" and at all relevant times set forth below acted in the capacity of a police officer.

8. Upon information and belief at all times hereinafter mentioned and on the 11th day of October, 2016, "Doe", was acting within the scope of his employment as a police officer and under the direction of the "City" as their agent, servant and/or employee.

9. Collectively Sanchez, Perez and Doe will hereinafter be referred to as the "officers".

10. Upon Information and belief, on October 11, 2016 the "officers", individually

and/or collectively, were acting under and required to follow the New York City Police Patrol Guidelines.

11. On the 11th day of October, 2016, plaintiff Henry Mitchell, hereinafter referred to as "Mitchell" was a resident of the State of North Carolina, County of Ahoske.

12. That on October 11, 2017, at approximately 8:00 p.m. The plaintiff, Mitchell was lawfully driving in the vicinity of 2931 Eight Avenue, New York County, hereinafter referred to as "the location".

13. At that time and location, the plaintiff was ordered to stop his vehicle for which he complied.

14. Perez approached Mitchell's driver side of his vehicle and requested license and reregistration.

15. Mitchell complied but asked "Why?"

16. Sanchez, who was located on the passenger side of Mitchell's vehicle with Doe, pointed his flashlight in Mitchell's eyes and said "This is how it's going to go down."

17. Sanchez further stated "You give him your Driver's License and Registration". Mitchell requested a Supervisor, for which Sanchez replied he's the Supervisor.

18. Mitchell was then forcibly removed from the car, while being threatened.

19. Mitchell then proceeded to record the incident and asked "What do you need?"

20. As Mitchell attempted to retrieve the documents Sanchez was poking him in his chest and caused Mitchell to fall back toward his vehicle.

21. Sanchez then placed handcuffs on Mitchell and ordered Perez and Doe to take Mitchell's cell-phone. Mitchell was then told by Sanchez, he was being arrested.

22. Sanchez also stated that Mitchell was driving with excessive tinted windows despite not testing the tint.

23. The plaintiff was forcibly handcuffed and forcibly placed into a police vehicle.

24. The plaintiff informed the officers that his handcuffs were too tight but his complaint was ignored.

25. Mitchell was illegally searched at the scene and at the precinct.

26. Mitchell was detained for two hours, whereupon, the officer continuously threatened Mitchell prior to being released.

27. Mitchell's vehicle was abandoned in the vicinity of Eight Avenue and his son was prohibited from driving the vehicle and as a result had to walk to a relative's residence.

28. Mitchell suffered injury to his shoulder, wrists, and hands as a result of the officer's misconduct and ignoring his request to use two sets of hand cuffs or alternatively loosening the tightened placed handcuffs.

33. Mitchell sought medical treatment upon being released.

34. That a 50(h) hearing was held on February 22, 2017.

35. That more than 30 days have elapsed since the notice of claim and intention to sue has been served upon the defendants and the said defendants have neglected or refused to make any adjustment or payment thereof.

36. That this action is commenced within one year and 90 days after the cause of action arose.

37. It is hereby alleged, pursuant to CPLR 1603, that this action is exempt from the operation of CPLR 1601 from the operation of CPLR 1601, by reason of one or more of the

exemptions provided in CPLR 1602.

AS AND FOR A FIRST CAUSE OF
ACTION ON BEHALF OF PLAINTIFF
FOR FALSE IMPRISONMENT

38. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "37" with the same force and effect as if more fully and at length set forth herein.

39. That beginning on or about the 11th day of October, 2016, at or about approximately 8:00 p.m. at or near the "location" until the plaintiff was released, the defendants, their agents, servants and/or employees detained and imprisoned plaintiff without any just cause or grounds.

40. That said imprisonment was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, or cause to believe that the plaintiff was guilty of any crimes for which he was charged.

41. The plaintiff was wholly innocent of all criminal charges and did not contribute in any way or manner to his arrest and imprisonment by the defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely against his will.

42. That the defendants, their agents, servants and/or employees, as set forth above, intended to confine the plaintiff; the plaintiff was conscious of the confinement; he did not consent to the confinement; and the confinement was not otherwise privileged.

43. That the plaintiff was confined against his will until he was released.

44. That by reason of the aforesaid false imprisonment and detention, plaintiff was subjected to great indignity, humiliation, loss of work and loss of freedom and the said plaintiff has been otherwise damaged.

45. That by reason of the aforesaid, the plaintiff has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A SECOND CAUSE OF
ACTION ON BEHALF OF PLAINTIFF
FOR FALSE ARREST**

46. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "45" with the same force and effect as if more fully and at length set forth herein.

47. That beginning on or about the 11th day of October, 2016, at or about approximately 8:00 p.m. at the "location", the plaintiff was handcuffed and placed under arrest by the defendants, their agents, servants and/or employees without any just cause or grounds, and held against his will under full force of arms..

48. That said arrest was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, and based on an illegal stop and search of the plaintiff, when the defendants lacked cause to believe that the plaintiff committed, or was about to commit a crime or was guilty of any crimes.

49. The plaintiff was wholly innocent of all criminal charges and did not contribute in any way or manner to his arrest and imprisonment by the defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely

against his will.

50. That the defendants, their agents servants and/or employees, as set forth above, intended to seize, search, and arrest the plaintiff; that the plaintiff was conscious of the arrest and confinement; the plaintiff did not consent to the arrest and confinement; and the arrest was not otherwise privileged.

51. That by reason of the aforesaid false arrest, plaintiff was subjected to great indignity, humiliation, stress and loss of freedom and the said plaintiff has been otherwise damaged.

52. That by reason of the aforesaid, the plaintiff has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

AS AND FOR A THIRD CAUSE OF
ACTION ON BEHALF OF THE PLAINTIFF
FOR ASSAULT AND BATTERY

53. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "52" with the same force and affect as if more fully and at length set forth herein.

54. The plaintiff was seized, searched, held, handcuffed, threatened, and emotionally brutalized by the defendant, "City", and the "NYPD" its agents/servants, and/or employees, including defendants Sanchez, Perez, and Doe.

55. That all said contact was committed without the plaintiff's permission or consent.

56. That all said contact was unlawful and without privilege.

57. That the use of force was excessive and without justification.

58. That all contact committed by defendants through their agents, servants, and/or

employees, including defendants “Sanchez”, “Perez” and/or “Doe”, was offensive to plaintiff and caused him to fear further contact and imminent harm, and caused plaintiff to sustain physical and/or psychological injury.

59. That the above acts committed by the defendants constituted an battery and/or assault of the plaintiff.

60. That by reason of the aforesaid, the plaintiff, has been damaged in a sum exceeding the jurisdictional limits of lower courts.

AS AND FOR A FOURTH CAUSE OF
ACTION ON BEHALF OF THE PLAINTIFF
FOR NEGLIGENCE

61. The plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "60" with the same force and affect as if more fully and at length set forth herein.

62. That the defendant, “City” was careless and reckless in hiring, retaining, training, assigning, failing to retrain, in monitoring, supervising and promoting as and for its employees, defendants “Sanchez”, “Perez”, and “Doe”, in that said employee(s) lacked the experience, deportment and ability to be employed by the defendants in the capacity in which they were utilized, i.e. as police officers; in that the defendant, “City” failed to exercise due care and caution in its hiring and promoting practices; in that the defendant “City” failed to investigate the above named employee’s backgrounds; in that the City failed to properly train, supervise and monitor the ‘officers; and in that that the defendant City was negligent in disciplining, retraining and retaining the named defendant officers;’ and in that the defendants, their agents, servants and employees, were otherwise careless, negligent and reckless.

63. That upon information and belief the City by and through its agents had received numerous civilian complaints and/or lawsuits, against defendants “Sanchez”, “Perez” and “Doe” that they were assigned to, prior to their stop, seizure, search, discourtesy, fabrication of evidence and assault and battery of Mitchell on October 11, 2016.

64. That the City failed to properly retrain said officer, negligently continued to employ said officers, negligently promoted and assigned Sanchez to be a supervisor, negligently retained Sanchez, Perez, and Doe despite evidence of their police misconduct and continued to assign said officers to act in an undercover capacity without proper supervision, training and discipline.

65. That the “officers”, the while acting within the scope of their employment, were negligent in that each failed to use such care in the performance of his police duties as a reasonably prudent and careful police officer would have used under similar circumstances; in that each was negligent, careless and reckless in the manner in which they investigated and/or performed his police duties; in that they failed to intervene or mitigate police misconduct; in that the police department permitted or condoned the false arrest, and/or false documentation submitted by these and other officers; in that they failed to secure prompt and necessary medical attention; and in that they failed to timely notify the New York County District Attorney’s Office of exculpatory information; and in that the defendants, their agents, servants and/or employees were otherwise careless, reckless and negligent.

66. That the aforesaid occurrence, to wit: battery and assault, false arrest and imprisonment, malicious prosecution, and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the defendants, its agents, servants

and/or employees including defendants “Sanchez”, “Perez”, “Doe” without any negligence on the part of the plaintiff contributing thereto.

67. That by reason of the aforesaid, the plaintiff, was imprisoned, lost his freedom, and stressed, and he was thereby damaged.

68. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court.

**AS AND FOR A FIFTH, SIXTH AND SEVENTH CAUSES OF ACTION:
FOR VIOLATIONS OF PERSONAL CONSTITUTIONAL RIGHTS UNDER
42 U.S.C. 1983, 1985 AND 1986 AGAINST THE CITY OF NEW YORK**

69. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "68" with the same force and effect as if more fully and at length set forth herein.

70. That on or about the 11th day of October, 2016 at or about approximately 8:00 p.m. at the “location” the “officers” were present thereat as part of their regular and official employment as police officers for the defendant, “City”.

71. Plaintiff was lawfully and properly thereat, when the “officers” acting as agents, servants and/or employees of the defendant “City”, forcibly stopped, seized and frisked the plaintiff absent just cause, provocation or reason. The plaintiff had not engaged in any criminal conduct or suspicious activity.

72. Upon information and belief the named officers were required to fill out a stop, question and frisk report.

73. Upon information and belief they did not fill out and submit a stop, question and frisk report or stop question and frisk report worksheet as required.

74. Upon information and belief the officers fabricated a reason for searching the plaintiff.

75. Upon information and belief the officers fabricated the evidence that the plaintiff's vehicle was illegally tinted without performing the proper test to make that determination/ probable cause.

76. Further the officers present at the plaintiff's arrest participated and failed to report the false arrest.

77. Likewise when the Sanchez, Perez and/or Doe used excessive, unjustified force, no officer intervened or reported the misconduct as required by the New York City Patrol Guidelines.

78. Unnecessary and excessive use of force took place at the "location" in front of a witness.

79. Upon information and belief to date no disciplinary action has been taken against the offending officers for engaging in said conduct or for failing to intervene, stop it or report it.

80. That in order to cover up their misconduct the officers, individually and/or collectively conspired to file false police reports, voucher false evidence, give false statements and/or sign a false criminal court complaint for the purpose of falsely imprisoning, falsely arresting and/or maliciously prosecuting the plaintiff.

81. The officers individually and/or collectively, failed to provide the plaintiff the prompt and necessary medical treatment, as he complained of pain in wrist, hands and shoulder.

82. That said acts constituted an illegal seizure of the plaintiff and deprived plaintiff of his rights and liberties as set forth in the 4th and 14th Amendments of the Constitution of the

United States and of the State of New York and under 42 U.S.C. Section 1983 and/or 1986.

83. That said acts constituted acts of cruel and unusual punishment and deprived plaintiff of his rights and liberties as set forth in the 8th and 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Section 1983, 1985 and/or 1986.

84. That said acts constituted acts violated the plaintiff's freedom of speech as protected under the 1st and 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Section 1983, 1985 and/or 1986.

85. That said acts constituted acts of fabricating evidence, filing false reports and giving false statements and deprived plaintiff of his rights and liberties as set forth in the 5th and 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Section 1983, 1985 and/or 1986.

86. That plaintiff as an African American man was deprived of his right to equal protection under the law and was targeted and his rights violated based upon his race, a violation of the equal protection clause under the 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Section 1983, 1985 and/or 1986.

87. That the officers conspired by and through their conduct, including among other things their overt acts, their failure to intervene stop and report, threatening witnesses, and the falsification of reports and evidence, to deprive or hinder the plaintiff's right to justice, and to injure him.

88. The City's deliberate indifference to Sanchez, Perez, and Does conduct was a direct contributing factor and cause of the plaintiff's injuries as stated in this complaint.

89. The City's deliberate indifference to the defendant "officers" conduct and actions, which included violations of citizen's right, their failure to report misconduct, inaccurate and unaccounted for evidence, false arrest, false police reports, use of force, use of excessive force, illegal search and seizures, bias, discrimination, tolerance of failing to report misconduct, falsification of evidence etc is evident in their tolerance of the actions.

90. Upon information and belief the defendants did not prepare a stop question and frisk form with regard to Mitchell, despite being required to do so, and upon information and belief did not receive any punishment with respect to said deliberate omission.

91. That said deliberate indifference to the practices of New York City Police Officers including the named defendant officers, lead to a culture within the New York City Police Department that resulted in the illegal stop and search of the plaintiff, the use of force against the plaintiff, the conspiracy to hide or destroy and/or falsify evidence, filing false reports, omitting required reports, failing to secure prompt necessary medical attention, threats, vulgarity and discrimination.

92. That the failure to discipline, punish, investigate, reassign, fire, retrain, test gave officers tacit approval that their conduct was either condoned or would go unpunished. That fact that officers who engaged in said conduct were promoted only provided further evidence to their underlings that there was a code of silence, or "brotherhood of blue", and that transgressions should not be reported or the reporter would be deemed a persona non grata, or worse a "rat".

93. Further pressure upon officers was threat by and through quota or performance objectives. Upon information and belief the NYPD, and/or City established performance standards which demanded, or resulted in increased levels of stops and frisks, resulting in the

improper stop and frisk and later search of the plaintiff.

94. This policy which, upon information and belief was in existence on October 11, 2016 was codified in a 10/17/11 Police Officer Performance Objectives Operation Order. In that Order Commissioner Kelly directed all commands that "Department managers can and must set performance goals" relating to the "issuance of summons, the stopping and questioning of suspicious individuals, and the arrests of criminals". This de facto policy is ongoing.

95. The same Operation Order stated "uniformed members... Who do not demonstrate activities... or who fail to engage in proactive activities... will be evaluated accordingly and their assignments re-assessed".

96. Upon information and belief the City's deliberate indifference to the unconstitutional practices of it's employees, and in particular the named defendant officers, and the need for review and reformation was a contributing proximate cause of the plaintiff's injuries.

97. That said deliberate indifference to the need to:

- a. train officers in search and seizure laws, stop and inquire, probable cause, use of force, and duty to intervene and report;
- b. to grade and test to see if officers mastered legal and tactical concepts;
- c. to ensure that each officer reads and understands legal bulletins provided;
- d. to provide officers with situational training for use of force;
- e. properly discipline officers who fail to follow police and administrative guidelines;
- f. analyze disparities of application of stop, frisks, and use of force as applied between whites and minorities;

- g. to analyze stop and frisk data in the context of arrests that were dismissed, summons dismissed;
- h. to analyze stop and frisk data in the context of use of force/reasons for the use of force/ and whether the charges for which the force was used, i.e resisting arrest or assault of a police officer were sustained;
- i. track, discipline, monitor, retrain and reassign officers who have questionable stop and frisk practices, use of force complaints, complaints of witness intimidation, providing false statements, among other violations, as reported by number of citizen complaints, notices of claim, lawsuits and/or dismissals of their arrests and summons and complaints of fellow officers, including data contained if unsubstantiated CCRB or IAB investigations;
- j. to retest officers knowledge of patrol guidelines when they are out of the academy
- k. to provide situational simulations and to grade the officers performance, and not pass the officer until he or she has demonstrated adequate proficiency;
- l. to discipline officers who fail to report non-compliant officers or who engage in a conspiracy of silence;
- m. report all referrals for psychological counseling, and change the officers assignment if required or necessary;
- n. analyze the use of force, and the amount of force used in proportion to the charges alleged and what if any injury was sustained by the officer;
- o. reassign officers who have a high number of complaints, lawsuits and/or investigations against them;

- p. hold on scene supervisors responsible for the enforcement of New York City Patrol Guidelines;
- q. to hold officers responsible for failing to fill out stop and frisk reports;
- s. to discipline officers who order witnesses to stop photographing or videotaping their conduct; caused or substantially contributed to the events of October 11, 2016.

98. Upon information and belief the City was aware that the NYPD customs, policies and procedures, as well as their deliberate indifference to the unconstitutional applications of their customs, policies and procedures, and need for reformation of its training, oversight, analysis, supervision, monitoring, disciplining and review would lead to constitutional violations of its citizenry, and did lead to said violations of the plaintiff's constitutional rights on October 11, 2016.

99. The acts of police officers who violate the civil and constitutional rights of the Citizens of New York routinely go unreported by fellow police officers, not investigated by their superior officers, and consequently their acts, actions, omissions go unpunished, failure to intervene and failure to report misconduct, report is the norm, not the exception. In many cases police officers failed to intervene in the face of misconduct; nor did they report the misconduct of their fellow officers, or receive and punishment for having failed to do so. Consequently, the acts of police officers in which they use excessive force, engage in racial profiling, making or file false arrests and reports to cover-up their conduct, make warrantless entry into citizens homes, etc., are condoned by other officers present, their supervisors, precinct Commanders, and the NYPD, and ultimately lead to the illegal seizure, arrest, use of force and excessive use of force among other violations against Mitchell herein.

100. Upon information and belief, police officers are rarely prosecuted, disciplined or investigated for providing false statements, filing false reports, failing to intervene or report misconduct, and/or making false arrests.

101. The officers herein conspired to deprive the plaintiff of evidence, of a fair trial, of witnesses, of medical attention , and of equal protection of the law and substantive due process. The City's deliberate indifference to their conduct made such violations possible.

102. That the plaintiff's false arrest, battery and assault, and malicious prosecution and violation of his constitutional rights resulted from the defendant City's practices, policies and/or customs, and/or their deliberate indifference to patterns and /or police practices which included excessive use of force; illegal use of police equipment; failing follow police guidelines; failing to monitor or discipline police misconduct; failing to gather evidence when allegations of police misconduct are involved; condoning a code of silence within the police department regarding misconduct; filing resisting arrest charges to cover up illegal use of force by police; engaging in racial profiling; failing to properly supervise, train, investigate or discipline officers; engaging in illegal stop question and frisks, permitting or condoning illegal search and seizure of property and persons, any and /or all of the above contributing to plaintiff's false arrest, and prosecution, and injuries.

103. Defendants actions on October 11, 2016 were performed under the color of law and the policies, statues, ordinances, rules, practices and regulations of the City of New York, and they were performed to the detriment of the plaintiff.

104. That plaintiff did not commit any illegal act, either before or at the time he was falsely arrested and imprisoned, assaulted, battered, and deprived of his constitutional rights as

set forth in the Constitution of the United States, particularly 42 U.S.C. §1983, 1985 and 1986 and the Constitution of the State of New York.

105. That by reason of the aforesaid, the plaintiff was deprived his liberty, lost income, assaulted, injured, maliciously prosecuted, and he was damaged.

106. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks compensatory and punitive damages, costs, attorneys fees, and expert fees as provided by 42 U.S.C. Sections 1983, 1985 1986 and 1988, and such other relief as to the court may seem just and proper.

AS AND FOR AN EIGHTH THROUGH TENTH CAUSE OF ACTION:
ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTION 1983, BY POLICE OFFICER PEREZ, SGT. SANCHEZ
AND POLICE OFFICER JOHN DOE IN THEIR INDIVIDUAL CAPACITIES
AND AS AGENTS OF THE CITY OF NEW YORK, THE PLAINTIFF ALLEGES:

107. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "106" with the same force and effect as if more fully and at length set forth herein.

108. That at all times hereinafter mentioned, the defendant "Sanchez" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

109. That at all times hereinafter mentioned, the defendant "Perez" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

110. That at all times hereinafter mentioned, the defendant “Doe” was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

111. That at all times hereinafter mentioned, the defendant officers, individually and collectively, were acting pursuant to orders and directives from defendant, The City of New York.

112. That during all times hereinafter mentioned, the defendants “officers”, individually, and/or collectively acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, and engaged in the illegal conduct set forth this complaint to the injury of the plaintiff, and deprived him of the rights, privileges and immunities secured to him by the Fourth, and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1983 and 1986.

113. That the unlawful and illegal conduct of defendants “officers” deprived plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York:

- a) The right of plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States; and,
- b) The right not to be discriminated against based upon the plaintiff’s race, creed, sex, or sexual orientation.

- c) The right to Due Process Law.
- d) The right to equal protection under the law.
- e) The right not to be subjected to cruel and unusual punishment

114. That by reason of the aforesaid violations, use of force, use of arbitrary, excessive and sadistic force, seizure of plaintiff's person, his false arrest and false imprisonment, assault and battery, falsifying evidence, discrimination and malicious prosecution the defendant Police "Officers" violated plaintiff's rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, "the officers" and violated 42 U.S.C. §1983.

115. That as a direct proximate result of "the officers" actions plaintiff was physically and emotionally injured, lost his job and was subjected to great indignities and humiliation, and pain and distress of mind and body and was humiliated and defamed thereby.

116. That by reason of the aforesaid, plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain,.

117. That by reason of the aforesaid, the plaintiff has been damaged in a sum of exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorneys fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

AS AND FOR A ELEVENTH THROUGH THIRTEENTH CAUSE OF ACTION:
ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTION 1985, BY SGT. SANCHEZ, POLICE OFFICER PEREZ,
AND POLICE OFFICE JOHN DOE IN THEIR INDIVIDUAL CAPACITIES
AND AS AGENTS OF THE CITY OF NEW YORK, THE PLAINTIFF ALLEGES:

118. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "117" with the same force and effect as if more fully and at length set forth herein.

119. That at all times hereinafter mentioned, the defendant "Sanchez" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

120. That at all times hereinafter mentioned, the defendant "Perez" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

121. That at all times hereinafter mentioned, the defendant "Doe" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

122. That at all times hereinafter mentioned, the defendant officers, individually and collectively, were acting pursuant to orders and directives from defendant, The City of New York.

123. That during all times hereinafter mentioned, the defendants "officers",

individually, and/or collectively acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, and conspired to engage in the illegal conduct set forth this complaint to the injury of the plaintiff, and deprived him of the rights, privileges and immunities secured to him by the First, Fourth, Eighth, and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1985

124. That the defendant “officers” conspired to deprive plaintiff of witnesses, evidence, a fair trial, exculpatory information and material, to intimidate and threaten, to abuse, to degrade, to assault and batter, to deny prompt and necessary medical attention and to due process of law and equal protection of the law.

125. That by reason of the aforesaid violations, use of force, use of arbitrary, excessive and sadistic force, seizure and search of plaintiff’s person, his false arrest and false imprisonment, assault and battery, falsifying evidence, and malicious prosecution, and discrimination the defendant Police “Officers” violated plaintiff’s rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, “the officers” and violated 42 U.S.C. §1985.

126. That as a direct proximate result of “the officers” actions plaintiff was imprisoned, physically and emotionally injured, lost his job and was subjected to great indignities and humiliation, and pain and distress of mind and body and was humiliated and defamed thereby.

127. That by reason of the aforesaid, plaintiff was injured in mind and body, still

suffers and upon information and belief, will continue to suffer great physical and mental pain,.

128. That by reason of the aforesaid, the plaintiff has been damaged in a sum of exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorneys fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1985 and 1988, and such other relief as to the court may seem just and proper.

AS AND FOR A FOURTEENTH THROUGH SIXTEENTH CAUSE OF ACTION:
ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTION 1986, BY SGT SANCHEZ, POLICE OFFICER PEREZ,
AND POLICE OFFICER JOHN DOE IN THEIR INDIVIDUAL CAPACITIES
AND AS AGENTS OF THE CITY OF NEW YORK, THE PLAINTIFF ALLEGES:

129. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "128" with the same force and effect as if more fully and at length set forth herein.

132. That at all times hereinafter mentioned, the defendant "Sanchez" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

133. That at all times hereinafter mentioned, the defendant "Perez" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

134. That at all times hereinafter mentioned, the defendant "Doe" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the

policies, statutes, ordinances, rules and regulations of the City of New York.

135. That at all times hereinafter mentioned the defendant officers, individually and collectively, were acting pursuant to orders and directives from defendant, The City of New York.

136. That during all times hereinafter mentioned, the defendants “officers”, individually, and/or collectively acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, individually and/or collectively engaged in, or conspired to engage in conduct that was illegal, and though he or they had the ability or power to prevent or aid in the preventing of the commission of the same the “officers” neglected or refused to do so.

137. That the officers, each of them could have aided or prevented the use of force, the use of arbitrary, excessive and sadistic force, the seizure and search of plaintiff’s person, the plaintiff’s false arrest and false imprisonment, the battery and assault, the falsifying of evidence, and malicious prosecution, and discrimination, the defendant Police “Officers” refused or neglected to do so, and thereby violated plaintiff’s rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, “the officers” and violated 42 U.S.C. §1986.

138. That as a direct proximate result of “the officers” actions plaintiff was imprisoned, physically and emotionally injured, lost his job and was subjected to great indignities and humiliation, and pain and distress of mind and body and was humiliated and defamed thereby.

139. That by reason of the aforesaid, plaintiff was injured in mind and body, still

suffers and upon information and belief, will continue to suffer great physical and mental pain,.

140. That by reason of the aforesaid, the plaintiff has been damaged in a sum of exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorneys fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1986 and 1988, and such other relief as to the court may seem just and proper.

AS AND FOR A SEVENTHTEENTH CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFF AGAINST THE DEFENDANTS FOR MALICIOUS
PROSECUTION

141. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "140" with the same force and effect as if more fully and at length set forth herein.

142. The defendants filled out false police reports, signed false criminal court complaint and corroborating affidavits against the plaintiff for the purpose of prosecuting him for the charge of attempted assault in the third degree, resisting arrest and harassment.

143. The defendants took such actions, knowingly and with a malicious disregard for the truth, and did so with the intent to cover up the illegal arrest of the plaintiff and the injuries that he sustained at the hands of the police.

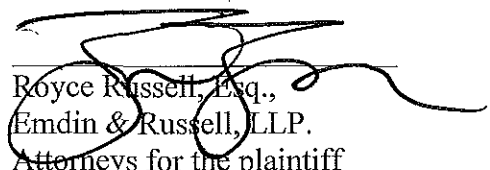
144. The plaintiff was at all times innocent of any crime charged.

146. On or about June 13, 2017, all criminal charges were dismissed against the plaintiff.

147. That by reason of the aforesaid malicious prosecution, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

WHEREFORE, the plaintiffs demand judgment against the defendants in a sum to be determined by the trier of fact, plus costs, attorney's fees, punitive damages (on the Fifth through Sixteenth causes of action) and such other and further relief as to the Court seems just and proper on the First through the Sixteenth causes of action.

DATED: New York, New York
October 2, 2017



Royce Russell, Esq.,
Emdin & Russell, LLP.
Attorneys for the plaintiff
499 Seventh Avenue, Floor 12N
New York, New York 10018
(212) 683-3995

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

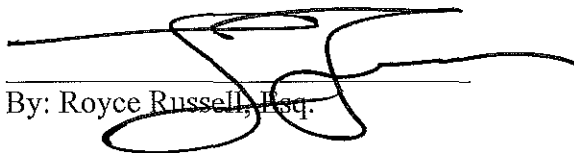
That I am an attorney associated with the law firm of Royce Russell, Esq., the attorneys of record for the Plaintiff in the within action; that I have read the foregoing Summons and Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

The undersigned further states that the reason this Summons and Complaint is made by me and not by the Plaintiff is that the Plaintiff do not reside within the county in which my office is located.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiff and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
October 2, 2017


By: Royce Russell, Esq.